

An Act

ENROLLED SENATE
BILL NO. 1641

By: Daniels of the Senate

and

Strom of the House

An Act relating to business entities; amending 18 O.S. 2021, Sections 2005, as amended by Section 3, Chapter 121, O.S.L. 2024, 2043, and 2055.2, as amended by Section 21, Chapter 121, O.S.L. 2024 (18 O.S. Supp. 2025, Sections 2005 and 2055.2) which relate to the Oklahoma Limited Liability Company Act; requiring submission of electronic mail address of certain agents or entities to the Secretary of State; amending 54 O.S. 2021, Sections 500-201A, 500-210A, and 500-902A, which relate to the Uniform Limited Partnership Act of 2010; requiring submission of electronic mail address of certain agents or entities to the Secretary of State; updating statutory references; updating statutory language; and providing an effective date.

SUBJECT: Electronic mail address for business entities

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 18 O.S. 2021, Section 2005, as amended by Section 3, Chapter 121, O.S.L. 2024 (18 O.S. Supp. 2025, Section 2005), is amended to read as follows:

Section 2005. A. The articles of organization shall set forth:

1. The name of the limited liability company;

2. The term of the existence of the limited liability company which may be perpetual; and

3. The street address of its principal place of business, wherever located, and the name, electronic mail address, and street address of its registered agent which shall be identical to its registered office in this state.

B. If the limited liability company is to establish two or more series of members, managers or membership interests having separate rights, powers or duties as provided under Section 2054.4 of this title or Section ~~14~~ 2054.5 of this ~~act~~ title and the debts, liabilities and obligations incurred, contracted for or otherwise existing with respect to a particular series are to be enforceable against the assets of the series only, the articles of organization shall set forth a notice of the limitation on liabilities of the series.

C. The articles of organization may set forth any other matters the members determine to include. It is not necessary to set out in the articles of organization any of the powers enumerated in Section 2000 et seq. of this title.

SECTION 2. AMENDATORY 18 O.S. 2021, Section 2043, is amended to read as follows:

Section 2043. Before transacting business in this state, a foreign limited liability company shall register with the Office of the Secretary of State. In order to register, a foreign limited liability company shall:

1. Pay to the Secretary of State a registration fee required by Section ~~56~~ 2055 of this ~~act~~ title;

2. Provide the Secretary of State with an original certificate from the certifying officer of the jurisdiction of the foreign limited liability company's organization attesting to the foreign limited liability company's organization under the laws of such jurisdiction; and

3. Submit to the Office of the Secretary of State an application in duplicate for registration as a foreign limited

liability company, signed by a manager, member, or other person, and setting forth:

- a. the name of the foreign limited liability company and, if different, the name under which it proposes to transact business in this state,
- b. the state or other jurisdiction and date of its organization,
- c. the name, electronic mail address, and street address of a registered agent in this state which agent shall be an individual resident of this state, or a domestic or qualified foreign corporation, limited liability company, or limited partnership. Each registered agent shall maintain a business office identical with the registered office which is open during regular business hours to accept service of process and otherwise perform the functions of a registered agent. If an additional registered agent is designated, service of process shall be on that agent and not on the Secretary of State,
- d. a statement that the Office of the Secretary of State is appointed the agent of the foreign limited liability company for service of process if no agent has been appointed under subparagraph c of this paragraph, or if appointed, the agent's authority has been revoked or if the agent cannot be found or served with the exercise of reasonable diligence,
- e. the address of the office required to be maintained in the state of its organization by the laws of that state or, if not so required, of the principal office of the foreign limited liability company, and
- f. such additional information as may be necessary or appropriate in order to enable the Office of the Secretary of State to determine whether such limited liability company is entitled to transact business in this state.

SECTION 3. AMENDATORY 18 O.S. 2021, Section 2055.2, as amended by Section 21, Chapter 121, O.S.L. 2024 (18 O.S. Supp. 2025, Section 2055.2), is amended to read as follows:

Section 2055.2.

ANNUAL CERTIFICATE FOR DOMESTIC LIMITED LIABILITY COMPANY AND
FOREIGN LIMITED LIABILITY COMPANY

A. Every domestic limited liability company and every foreign limited liability company registered to do business in this state shall file a certificate each year in the Office of the Secretary of State, which confirms it is an active business and includes its principal place of business address and electronic mail address, and shall pay an annual certificate fee of Twenty-five Dollars (\$25.00).

B. The annual certificate shall be due on the anniversary date of filing the articles of organization, articles of registered series, or registration, ~~as the case may be~~, until cancellation of the articles of organization or articles of registered series or withdrawal of the registration.

C. The Secretary of State shall, at least sixty (60) days before the anniversary date of each year, cause a notice of the annual certificate to be sent to each domestic limited liability company and registered series and each foreign limited liability company and registered series required to comply with the provisions of this section to its last known electronic mail address of record with the Secretary of State.

D. A domestic limited liability company or registered series or foreign limited liability company or registered series that fails to file the annual certificate and pay the annual certificate fee within sixty (60) days after the date due shall cease to be in good standing as a domestic limited liability company or registered series or registered as a foreign limited liability company or registered series in this state.

E. Except for accepting a resignation of a registered agent when a successor registered agent is not being appointed or an application for reinstatement, the Secretary of State shall not accept for filing any certificate or articles, or issue any

certificate of good standing, in respect to any domestic limited liability company or registered series that has ceased to be in good standing or foreign limited liability company or registered series that has ceased to be registered, unless or until the domestic limited liability company or registered series has been reinstated in good standing or the foreign limited liability company or registered series has been reinstated as a foreign limited liability company or registered series duly registered in this state.

F. A domestic limited liability company or registered series that has ceased to be in good standing or a foreign limited liability company or registered series that has ceased to be registered in this state may not maintain any action, suit or proceeding in any court of this state until the domestic limited liability company or registered series has been reinstated in good standing or the foreign limited liability company or registered series has been reinstated as a foreign limited liability company or registered series duly registered in this state. An action, suit or proceeding may not be maintained in any court of this state by any successor or assignee of the domestic limited liability company or registered series or foreign limited liability company or registered series on any right, claim or demand arising out of the transaction of business by the domestic limited liability company or registered series after it has ceased to be in good standing or a foreign limited liability company or registered series that has ceased to be registered in this state until the domestic limited liability company or registered series or foreign limited liability company or registered series, or any person that has acquired all or substantially all of its assets, has caused the limited liability company or registered series to be reinstated in good standing or as a foreign limited liability company or registered series duly registered in this state, as applicable.

SECTION 4. AMENDATORY 54 O.S. 2021, Section 500-201A, is amended to read as follows:

Section 500-201A.

FORMATION OF LIMITED PARTNERSHIP; CERTIFICATE OF LIMITED PARTNERSHIP.

(a) In order for a limited partnership to be formed, a certificate of limited partnership must be delivered to the Secretary of State for filing. The certificate must state:

(1) the name of the limited partnership, which must comply with Section ~~8~~ 500-108A of this ~~act~~ title;

(2) the electronic mail address and the street and mailing address of the initial designated office and the name, electronic mail address, and street and mailing address of the initial agent for service of process;

(3) the name, electronic mail address, and the street and mailing address of each general partner;

(4) whether the limited partnership is a limited liability limited partnership;

(5) the term of its duration if the duration is not to be perpetual; and

(6) any additional information required by ~~Article 11~~ Sections 500-1101A through 500-1113A of this ~~act~~ title.

(b) A certificate of limited partnership may also contain any other matters but may not vary or otherwise affect the provisions specified in subsection (b) of Section ~~10~~ 500-110A of this ~~act~~ title in a manner inconsistent with that section.

(c) If there has been substantial compliance with subsection (a) of this section, subject to subsection (c) of Section ~~24~~ 500-206A of this ~~act~~ title, a limited partnership is formed when the Secretary of State files the certificate of limited partnership.

(d) Subject to subsection (b) of this section, if any provision of a partnership agreement is inconsistent with the filed certificate of limited partnership or with a filed statement of dissociation, cessation, or change or filed articles of conversion or merger:

(1) the partnership agreement prevails as to partners and transferees; and

(2) the filed certificate of limited partnership, statement of dissociation, cessation, or change or articles of conversion or merger prevail as to persons, other than partners and transferees, that reasonably rely on the filed record to their detriment.

SECTION 5. AMENDATORY 54 O.S. 2021, Section 500-210A, is amended to read as follows:

Section 500-210A.

ANNUAL CERTIFICATE FOR SECRETARY OF STATE.

(a) A limited partnership or a foreign limited partnership authorized to transact business in this state shall deliver to the Secretary of State for filing an annual certificate that states:

(1) the name of the limited partnership or foreign limited partnership;

(2) the street, mailing address and electronic mail address of its designated office and the name, electronic mail address, and street and mailing address of its agent for service of process in this state; and

(3) in the case of a foreign limited partnership, the state or other jurisdiction under whose law the foreign limited partnership is formed and any fictitious name adopted under subsection (a) of Section 500-905A of this title.

(b) Information in an annual certificate must be current as of the date the annual certificate is delivered to the Secretary of State for filing.

(c) The annual certificate is due on the anniversary date of the filing of the certificate of limited partnership or certificate of authority of a foreign limited partnership until cancellation of the certificate of limited partnership or certificate of authority.

(d) The Secretary of State shall, at least sixty (60) days before the anniversary date of each year, cause a notice of the annual certificate to be sent to each domestic limited partnership

and each foreign limited partnership required to comply with the provisions of this section to the last known electronic mail address of record with the Secretary of State.

SECTION 6. AMENDATORY 54 O.S. 2021, Section 500-902A, is amended to read as follows:

Section 500-902A.

APPLICATION FOR CERTIFICATE OF AUTHORITY.

(a) A foreign limited partnership may apply for a certificate of authority to transact business in this state by delivering an application to the Secretary of State for filing. The application must state:

(1) the name of the foreign limited partnership and, if the name does not comply with Section ~~§ 500-108A~~ of this ~~act~~ title, a fictitious name adopted pursuant to subsection (a) of Section ~~79 500-905A~~ of this ~~act~~ title;

(2) the name of the state or other jurisdiction under whose law the foreign limited partnership is organized;

(3) the electronic mail address, and the street and mailing address of the foreign limited partnership's principal office and, if the laws of the jurisdiction under which the foreign limited partnership is organized require the foreign limited partnership to maintain an office in that jurisdiction, the electronic mail address, and the street and mailing address of the required office;

(4) the name, electronic mail address, and street and mailing address of the foreign limited partnership's initial agent for service of process in this state;

(5) a statement that the Secretary of State is appointed the agent of the foreign limited partnership for service of process if no agent has been appointed pursuant to paragraph (4) of this subsection or, if appointed, the agent's authority has been revoked or if the agent cannot be found or served with the exercise of reasonable diligence;

(6) the name, electronic mail address, and street and mailing address of each of the foreign limited partnership's general partners; and

(7) whether the foreign limited partnership is a foreign limited liability limited partnership.

(b) A foreign limited partnership shall deliver with the completed application a certificate of good standing or existence or a record of similar import signed by the Secretary of State or other official having custody of the foreign limited partnership's publicly filed records in the state or other jurisdiction under whose law the foreign limited partnership is organized.

SECTION 7. This act shall become effective November 1, 2026.

Passed the Senate the 2nd day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 4th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____